

OfstedCare Quality
Commission

Guidance

Area SEND inspections: framework and handbook

Updated 7 July 2025

Applies to England

Contents

Introduction

The area SEND inspection framework

The area SEND inspection handbook

Part 1: The evaluation schedule – how we will assess local areas

Part 2: How local area partnerships' provision for children and young people
with SEND will be inspected

Part 3: Monitoring inspections

Part 4: Engagement meetings

Annex A: information requested to support inspections



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This guidance came into force on 6 June 2025

Introduction

1. This document sets out the framework and handbook for inspecting local area arrangements for children and young people with special educational needs and/or disabilities (SEND). It was devised jointly by Ofsted and the Care Quality Commission (CQC) for use from 2023, and reviewed and updated in June 2025. We will continue to review and amend it periodically.

2. This document has 2 parts:

- the area SEND inspection framework – this sets out the purposes and principles of inspection and its statutory basis, along with the inspection approach, model, frequency and timing
- the area SEND inspection handbook – this sets out the evaluation criteria that inspectors use to reach inspection outcomes, and examples of the kinds of evidence they gather and activities they carry out to evaluate the local area's arrangements for children and young people with SEND. It includes information about the inspection process before, during and after the inspection

3. These inspections are carried out jointly by Ofsted and CQC. Inspectors who specialise in education, health and social care will work together as a single inspection team.

Collecting and processing personal information

4. During an inspection, inspectors will gather personal data and information that are necessary to help them evaluate local SEND arrangements.

[Ofsted's privacy notice \(https://www.gov.uk/government/publications/ofsted-privacy-notice\)](https://www.gov.uk/government/publications/ofsted-privacy-notice) and the [CQC's privacy statement \(https://www.cqc.org.uk/about-us/our-policies/privacy-statement\)](https://www.cqc.org.uk/about-us/our-policies/privacy-statement) set out what data we collect, what we do with it, how long we keep it and people's rights under data protection legislation.

The area SEND inspection framework

5. This framework sets out the purposes and principles of inspection and its statutory basis, along with the inspection approach, model, frequency and timing.

Principles and purpose of inspection

6. The purpose of inspection is to:

- provide an independent, external evaluation of the effectiveness of the local area partnership's arrangements for children and young people with SEND
- where appropriate, recommend what the local area partnership should do to improve the arrangements

7. Inspectors will uphold the highest professional standards in their work. They will treat everyone they meet during inspections fairly and with the respect and sensitivity they deserve. Inspectors will work constructively with leaders and staff, demonstrating professionalism, courtesy, empathy and respect at all times. Inspectors will evaluate a range of evidence against the [evaluation schedule \(https://www.gov.uk/government/publications/area-send-framework-and-handbook/area-send-inspections-framework-and-handbook#evaluation-schedule\)](https://www.gov.uk/government/publications/area-send-framework-and-handbook/area-send-inspections-framework-and-handbook#evaluation-schedule). They will follow Ofsted and CQC's published policies and relevant legislation in areas such as safeguarding and equality.

8. Ofsted's [code of conduct \(https://www.gov.uk/guidance/conduct-during-ofsted-inspections\)](https://www.gov.uk/guidance/conduct-during-ofsted-inspections) sets out the expectations for both inspectors and providers. At the set-up discussion, the lead inspector will explain these expectations and ask providers to read the code. Inspectors will work with leaders and staff constructively and will act with professionalism, courtesy, empathy and respect.

9. Our inspections of local area partnerships:

- evaluate the impact of the local area partnership's arrangements for children and young people with SEND
- provide information to help local area partnerships improve their arrangements for children and young people with SEND, and to support improvement of the SEND system as a whole
- ensure that information on the effectiveness of the local area partnership's SEND arrangements is available to children and young people with SEND and their families, so they can make informed decisions about their education, health and care
- include an evaluation of the local authority's commissioning and oversight arrangements for children and young people in alternative provision; our reports include information on this, to help local authorities improve their arrangements

- provide information for the Secretary of State for Education, the Secretary of State for Health and Social Care, and Parliament about the effectiveness of the local area partnership's SEND arrangements, to enable the government to act, if necessary; this information includes whether local area partnerships are working effectively to improve the experiences and outcomes of children and young people with SEND

Statutory basis for area SEND inspections

10. Ofsted and CQC carry out joint inspections of local areas at the request of the Secretary of State for Education under section 20(1)(a) of the Children Act 2004. [\[footnote 1\]](#) At their discretion, they may also carry out monitoring inspections of local areas using their power in section 20(2) of the Children Act 2004.

Local area partnership duties

11. Inspectors assess the extent to which the local area partners are complying with relevant legal duties relating to arrangements for children and young people with SEND. Relevant legal duties may include duties under the Children and Families Act 2014, the Equality Act 2010 and the Human Rights Act 1998.

Overarching approach to inspection

12. Inspections evaluate how well members of a local area partnership work together to improve the experiences and outcomes of children and young people with SEND. The focus is not on inspecting the specific individuals who work in the local area partnership.

13. 'Local area partnership' refers to those in education, health and social care who are responsible for the strategic planning, commissioning, management, delivery and evaluation of arrangements for children and young people with SEND who live in a local area. A local area is the geographical area covered by a local authority. When evaluating the local area partnership, inspectors focus mainly on how effectively the local authority and integrated care board (ICB) jointly plan, evaluate and develop services for children and young people with SEND. However, they also consider the duties of other area partners, which are set out in the Children and Families Act 2014 and described further in the SEND code of practice.

14. Inspections evaluate arrangements for all children and young people with SEND aged 0 to 25 covered by the SEND code of practice, including those who have an education, health and care (EHC) plan and those who

receive special educational needs (SEN) support. The scope of the inspection covers children and young people with SEND who live in the local authority area and attend education settings or receive health and/or care services outside of the local authority's geographical boundaries. However, it does not cover those who live in other local areas and attend an education setting within the local authority's boundaries.

15. The inspection will consider whether local authorities' approach to commissioning and overseeing alternative provision arrangements for children and young people in the local authority area meets their duties as set out in section 19 of the Education Act 1996 and in statutory guidance. [\[footnote 2\]](#)

Inspection model

16. The area SEND inspection system is an on-going cycle of inspection activity. We use previous area SEND inspection outcomes as well as the intelligence and information we have to inform our decisions about the timing and type of inspection.

17. The area SEND inspection system includes:

- full inspections, which evaluate and report on the impact of the local area partnership's arrangements for children and young people with SEND. We ask all areas to update and publish their strategic plans after a full inspection. Where we have identified areas for priority action, we will require the area to publish a priority action plan (area SEND), in line with Regulations 3 and 4 of the Children Act 2004 (Joint Area Reviews) Regulations 2015. This will ensure that the area fulfils the requirement under the previous framework to produce a written statement of action (WSOA)
- [monitoring inspections](#) of local areas that were identified as having widespread and/or systemic failings at their full inspection. These inspections will evaluate and report on what the local area partnership has done to address the areas for priority action that Ofsted and CQC identified at the previous full inspection. Monitoring inspections may also be carried out at the discretion of Ofsted and CQC where serious concerns have been identified through intelligence gathered outside a full inspection
- [engagement meetings](#) between Ofsted, CQC and representatives of the local area partnership. The purpose of these meetings is for Ofsted, CQC and the local area partnership to discuss the partnership's self-evaluation, SEND action plan, any challenges, and how leaders are addressing them. These meetings do not result in an evaluative outcome

- area SEND thematic visits to a small number of areas, to investigate a particular aspect of the SEND system in depth. These visits do not result in an evaluative outcome, although we do share our findings from the visits in a national report

The guidance for each set of thematic visits will be published separately.

18. Following a full inspection, inspectors will report on the effectiveness of the local area partnership's arrangements for children and young people with SEND. The report will include:

- the inspection outcome
- what it is like to be a child or young person with SEND in the local area
- what the local area partnership is doing well and what needs to be improved
- recommendations for improvements that the local area partnership should act on
- whether any areas for priority action have been identified, and which area partners are responsible for addressing them
- the likely type and timing of the next inspection activity

Frequency and type of area SEND inspections, monitoring inspections and meetings

19. All local areas will receive a full inspection at least once during a 5-year period. The frequency and type of inspection activity in any individual local area will be based on previous inspection outcomes and any relevant additional information. This includes regional intelligence and information that the local area partnership shares during engagement meetings.

20. Ofsted and CQC use the information we have when deciding how best to inspect each local area partnership. There will be times when concerns arise about a local area partnership. When this happens, the Ofsted regional director, in discussion with CQC, will decide whether to bring forward a full inspection or carry out a monitoring inspection.

21. There are 3 possible full inspection outcomes, leading to different subsequent inspection activity:

Inspection outcome	Subsequent meetings and inspection activities
The local area partnership's SEND arrangements typically lead to positive experiences and outcomes for children and young people with SEND. The local area partnership is taking action where improvements are needed.	Engagement meetings Full inspection usually within 5 years
The local area partnership's arrangements lead to inconsistent experiences and outcomes for children and young people with SEND. The local area partnership must work jointly to make improvements.	Engagement meetings Full inspection usually within 3 years
There are widespread and/or systemic failings leading to significant concerns about the experiences and outcomes of children and young people with SEND, which the local area partnership must address urgently.	Engagement meetings Submission of priority action plan (area SEND) Monitoring inspection, usually 18 months from the date when the local area partnership receives its final full inspection report Full inspection, usually within 3 years

22. If we become aware of information that suggests a significant deterioration in performance or a serious concern, Ofsted and CQC may carry out a monitoring inspection or bring forward an area's full inspection to take place sooner than originally planned.

23. If the local authority in the local area is also receiving monitoring visits under the '[Inspecting local authority children's services' framework](https://www.gov.uk/government/publications/inspecting-local-authority-childrens-services-from-2018/inspecting-local-authority-childrens-services) (<https://www.gov.uk/government/publications/inspecting-local-authority-childrens-services-from-2018/inspecting-local-authority-childrens-services>), there will usually be no more than 3 monitoring visits across both frameworks within a 12-month period.

24. Under the previous area SEND inspection framework, His Majesty's Chief Inspector (HMCI) required local areas identified as having significant weaknesses to produce a WSoA. Local areas with a WSoA that were not revisited under the previous framework will usually have a full inspection within the first 3 years of the new inspection cycle.

25. New local areas will usually have a full inspection within 3 years of coming into existence. Any monitoring inspections that were planned for the predecessor local area or areas will not be carried out.

26. There are other Ofsted and CQC inspections that will involve local area partners. When possible, we will take the timing of these inspections into account when planning the overall inspection schedule.

The area SEND inspection handbook

27. This handbook sets out how inspectors gather evidence and evaluate a local area partnership's arrangements for children and young people with SEND. This handbook is primarily a guide for inspectors on how to carry out area SEND inspections. We have made it publicly available so that children and young people with SEND, families, local area leaders, practitioners, and other organisations are informed about the processes and procedures of inspection.

28. The handbook balances the need for consistency in inspections with the flexibility required to respond to the individual circumstances of each local area. It should not be regarded as a set of inflexible rules, but as a broad account of inspection procedures. When applying the guidance in this handbook, inspectors will take appropriate action to comply with Ofsted and CQC's duties under the Equality Act 2010.

29. During the inspection, inspectors will visit providers such as early years settings, schools, alternative provision and colleges. In addition, inspectors may visit providers in specialist health and social care services, or those providing early help, support or services, to gather evidence. [\[footnote 3\]](#) Any setting that we visit will not be under inspection; the provision will remain subject to separate inspection arrangements in line with Ofsted and CQC's statutory and regulatory duties and powers.

30. This handbook has 4 parts:

- Part 1: The evaluation schedule – the evaluation criteria that inspectors use to reach an inspection outcome
- Part 2: How local area partnerships will be inspected – information about the processes before, during and after an inspection
- Part 3: Monitoring inspections – the purpose and details of monitoring inspections
- Part 4: Engagement meetings – the purpose and details of engagement meetings

Part 1: The evaluation schedule – how we will assess local areas

31. Ofsted and CQC have identified the features of effective local SEND arrangements from research, inspection evidence and consultation with children, young people, families, leaders and practitioners. We have used these features to create the evaluation criteria. Inspectors will use the evaluation criteria to determine the effectiveness of the local area partnership's SEND arrangements and their impact on the experiences and outcomes of children and young people.

32. Inspectors will evaluate the impact of the local area partnership's arrangements on the experiences and outcomes of children and young people with SEND, including the extent to which:

- children and young people's needs are identified accurately and assessed in a timely and effective way
- children, young people and their families participate in decision-making about their individual plans and support
- children and young people receive the right help at the right time
- children and young people are well prepared for their next steps, and achieve strong outcomes
- children and young people are valued, visible and included in their communities

33. Inspectors will evaluate how the local area partners work together to plan, evaluate and develop the SEND system, including the extent to which:

- leaders are ambitious for children and young people with SEND
- leaders actively engage and work with children, young people and families
- leaders have an accurate, shared understanding of the needs of children and young people in their local area
- leaders commission services and provision to meet the needs and aspirations of children and young people, including commissioning arrangements for children and young people in alternative provision
- leaders evaluate services and make improvements
- leaders create an environment in which effective practice and multi-agency working can flourish

34. The evaluation schedule is not exhaustive. In applying it, inspectors will use their professional judgement, together with the instructions and guidance in [part 2 \(https://www.gov.uk/government/publications/area-send-framework-and-handbook/area-send-inspections-framework-and-handbook#part-two\)](https://www.gov.uk/government/publications/area-send-framework-and-handbook/area-send-inspections-framework-and-handbook#part-two).

35. The evaluation schedule is a guide for inspectors. It can also support the local area partnership in its self-evaluation and ongoing improvement activities.

Approach to inspection outcomes

36. Following a full inspection, inspectors will give an overall summary outcome about the local area partnership. This inspection outcome reflects the inspectors' evaluation of the impact of the local area partnership's arrangements on the experiences and outcomes of children and young people with SEND.

37. Inspectors will use their professional judgement to decide how much evidence they need to gather against each of the evaluation criteria, following lines of enquiry as they emerge, to reach the final inspection outcome.

Inspection outcomes

38. There are 3 inspection outcomes:

The local area partnership's arrangements typically lead to positive experiences and outcomes for children and young people with SEND. The local area partnership is taking action where improvements are needed.

The next full area SEND inspection will be within 5 years.

Ofsted and CQC ask the local area partnership to update and publish its strategic plan based on the recommendations set out in this report.

The local area partnership's arrangements lead to inconsistent experiences and outcomes for children and young people with SEND. The local area partnership must work jointly to make improvements.

The next full area SEND inspection will take place within approximately 3 years.

Ofsted and CQC ask that the local area partnership updates and publishes its strategic plan based on the recommendations set out in this report.

There are widespread and/or systemic failings leading to significant concerns about the experiences and outcomes of children and young people with SEND, which the local area partnership must address urgently.

A monitoring inspection will be carried out within approximately 18 months. The next full area SEND inspection will take place within approximately 3 years.

HMCI requires the local area partnership to prepare and submit a priority action plan (area SEND) to address the identified areas for priority action.

Reaching an outcome that the local area partnership's arrangements typically lead to positive experiences and outcomes

39. Inspectors will reach this outcome if, having gathered and evaluated evidence using the evaluation criteria, they find that:

- children and young people are typically achieving strong outcomes, and
- children and young people's experiences of their education, health and care are typically positive, and
- the local area partnership has identified any areas for improvement and is taking effective action to address them, and
- there are no areas for priority action

Reaching an outcome that the local area partnership's arrangements lead to inconsistent experiences and outcomes

40. Inspectors will reach this outcome if:

- any of the points in relation to the experiences and outcomes of children and young people in paragraph 39 are not met, but
- there are no areas for priority action

Reaching an outcome that there are widespread and/or systemic failings

41. Inspectors will reach this outcome when:

- they have identified one or more areas for priority action; this will happen when there are significant concerns about the experiences and outcomes

of children and young people, because of particular systemic or widespread failings that have a significant negative impact on the experiences and outcomes of children and young people

Experiences and outcomes

42. The evaluation criteria describe the features of effective SEND arrangements. Inspectors will evaluate the impact of the local area partnership's SEND arrangements through the experiences and outcomes of children and young people.

43. Inspectors will evaluate individual children and young people's outcomes as part of their assessment of the local area partnership's self-evaluation of its strategic outcomes. Strategic outcomes are the outcomes that partnership leaders want to see for all children and young people in their local area. Inspectors will evaluate individuals' outcomes through activities such as tracking and sampling. Themes are likely to include, but are not limited to: health and well-being, communication, independence, positive relationships, community participation, moving into further and higher education and/or employment and preparation for adulthood.

44. Inspectors will evaluate outcomes as described in the SEND code of practice, including the individual outcomes that children and young people with SEND have told us are important to them. Inspectors will assess whether outcomes are sufficiently ambitious and reflect high expectations. This includes whether children and young people with SEND:

- have developed the knowledge, skills and behaviours to gain employment or meaningful occupation, move on to further or higher education, and/or live as healthily and as independently as possible
- have developed their self-esteem and resilience
- have made friends, and feel safe, valued and visible in their local communities

45. When evaluating experiences, inspectors will assess whether children and young people's experiences of education, health and care in their local area are positive, and why. They will evaluate whether children and young people with SEND:

- have gained from stable, supportive relationships and environments
- have had the opportunity to participate in community activities to widen their understanding of the opportunities available to them now and in their future
- have participated in decision-making about their own plans and support
- have had support provided when they have needed it, feel supported and believe that adults understand and advocate for them.

46. Inspectors will also seek to understand how children and young people have been supported through any adverse experiences they may have had.

47. Inspectors will not emphasise one type of evidence above others. Inspectors will gather evidence that is balanced and connected, to form a picture of the typical experiences and outcomes of children and young people and how the local area partnership's SEND arrangements have led to these.

The evaluation criteria

48. This section provides detail about what inspectors will consider when evaluating against each criterion.

49. The evaluation criteria apply across education, health and care, and to all children and young people with SEND aged 0 to 25 covered by the SEND code of practice, including those receiving SEN support and those with EHC plans.

50. Inspectors will evaluate the local authority's commissioning and oversight of alternative provision for all children and young people who attend, not only those with SEND.

The needs of children and young people with SEND are identified accurately and assessed in a timely and effective way

51. Inspectors will take account of the extent to which:

- children and young people are accurately identified as having SEND
- children and young people's needs are identified in a timely way, to prevent needs from escalating, whenever possible
- practitioners assess the strengths and determine the aspirations of the child or young person alongside their individual needs
- the criteria for carrying out assessments of need and for accessing services and support are understood, and the application of these criteria improves outcomes
- timely referrals are made to other services and agencies, where necessary

Children and young people with SEND and their families participate in decision-making about their individual plans and support

52. Inspectors will take account of the extent to which:

- children and young people access impartial information, advice and support that enables them to make informed choices about their future

- children, young people and their families are supported to understand their rights, make choices and contribute to decision-making about their plans and support
- children and young people understand their plans and support, including intended outcomes, and why some changes are not possible

Children and young people with SEND receive the right help and support at the right time

53. Inspectors will take account of the extent to which:

- plans are developed and support is provided in a timely way, and meets children and young people's needs
- children and young people receive support based on their identified needs when they are awaiting assessment
- plans and support are coordinated within and, where necessary, across providers and services, and are based on a shared understanding of the child or young person
- plans and support are regularly reviewed and updated to reflect changes in children and young people's skills, independence, understanding and other factors in their lives, including reduced support in line with reduced need where appropriate
- the wider needs of the child or young person's family are considered, and barriers to learning and participation are addressed

Children and young people with SEND are well prepared for their next steps and achieve strong outcomes

54. Inspectors will take account of the extent to which:

- the outcomes that are the most important to children, young people and their families are understood and planned for
- support and plans reflect children and young people's ambitions, and extend beyond required levels of support (such as the number of hours of support from a particular service) to focus on the planned outcome
- children and young people are supported before and during any point of transition, including when they will no longer be eligible for a service
- from an early age, children and young people develop the knowledge, skills and behaviours necessary to prepare for greater independence and adulthood, including in the areas of further and higher education, employment, more independent living, optimal health, positive relationships and participation in society

Children and young people with SEND are valued, visible and included in their communities

55. Inspectors will take account of the extent to which:

- children, young people and their families understand what community activities are available
- children and young people are supported to participate, where appropriate, in activities, and to make friends and develop positive relationships
- children and young people are supported to develop their confidence, resilience and knowledge, so that they can participate in universal and specialist activities as appropriate

Leaders are ambitious for children and young people with SEND

56. Inspectors will take account of the extent to which:

- leaders have an ambitious strategy that defines the shared outcomes they will work collectively to achieve for all children and young people with SEND, and they embed an aspirational culture of high expectations and quality across services and provision
- leaders understand their responsibilities and accountabilities, including their statutory duties and their individual responsibilities in the wider area strategy
- responsibilities are delegated in line with leaders' legal duties and there is strong oversight of the resulting activities
- processes for making decisions are structured so that the leaders responsible can swiftly agree to the changes that are required to improve services
- leaders challenge themselves and each other to improve experiences and outcomes for children and young people

Leaders actively engage and work with children and young people with SEND and their families

57. Inspectors will take account of the extent to which:

- leaders consider the specific needs of groups of children and young people with SEND, and how best to engage them in co-production
- leaders ensure that decisions relating to services are appropriately shaped by children and young people's needs, experiences, ambitions and outcomes
- leaders give feedback to children, young people and their families on changes they have made to their area's services, and explain where change is not possible and why

Leaders have an accurate, shared understanding of the needs of children and young people with SEND in their local area

58. Inspectors will take account of the extent to which:

- leaders gather accurate, timely information about children and young people with SEND in their local area and monitor the changing needs of the population, including using the perspectives of children, young people and their families
- leaders understand the experiences and outcomes of children and young people with SEND in their area; their backgrounds and identities, including any barriers to them accessing support; and their needs and strengths
- leaders share information across education, care and health services so they can learn from different perspectives and approaches

Leaders commission services and provision to meet the needs and aspirations of children and young people with SEND

59. Inspectors will take account of the extent to which:

- services and systems have been designed around the needs of children and young people, and are informed by evidence of what works in achieving good outcomes
- joint commissioning arrangements enable partners to make best use of all the resources available to improve outcomes for children and young people in the most efficient, effective, equitable and sustainable way
- joint commissioning arrangements meet the local area's statutory responsibilities for identifying, assessing and meeting needs
- leaders understand that children and young people with SEND may be more vulnerable to abuse, and ensure that this is carefully considered when commissioning and evaluating services
- the local authority identifies children and young people's needs accurately and arranges suitable full-time educational provision to meet the needs of children or young people who require alternative provision as early as possible, for example, ensuring that full-time education for children and young people who have been excluded begins no later than the sixth day of the exclusion
- the local authority ensures that there are intervention plans for each child and young person in alternative provision, including clear objectives and plans for their next steps, such as returning to mainstream education

Leaders evaluate services and make improvements

60. Inspectors will take account of the extent to which:

- leaders jointly evaluate whether their services and provision are improving outcomes for children and young people with SEND, not only whether children and young people have received the services
- leaders monitor whether there are sufficient services and provision to meet the needs and aspirations of the children and young people in their area and take appropriate action as a result

- leaders use information from a range of sources in their evaluation to improve their services and provision, including feedback from representative groups, children and young people who use services and data relating to outcomes
- leaders have established clear processes to enable services and providers to evaluate and improve their provision regularly
- the local authority evaluates how well the alternative provision it commissions is improving outcomes for children and young people, and takes action if needed
- the local authority maintains strong oversight arrangements for alternative provision it commissions, including oversight of each alternative provision's safety and suitability, and in particular of alternative providers that are not registered as schools

Leaders create an environment for effective practice and multi-agency working to flourish

61. Inspectors will take account of the extent to which:

- processes and systems are set up to support practitioners to work together and share appropriate information in a timely manner, including strong systems for identifying and responding to risks to children and young people with SEND
- leaders ensure that practitioners are clear on their individual roles and how they can best work together to improve outcomes for children and young people
- leaders ensure that practitioners have the appropriate skills to understand children and young people's needs and aspirations, and to create an inclusive environment
- leaders encourage practitioners working together to focus on the child or young person, identifying alternative solutions when existing options do not meet needs and aspirations effectively
- leaders ensure that practitioners working with children and young people with SEND have the right knowledge and skills to reduce the risk of harm, and understand that children and young people with SEND may be more vulnerable to abuse, neglect and exploitation

Alternative provision

62. Inspectors will use the evaluation criteria to evaluate the local authority's commissioning and oversight of alternative provision for all children and young people in placements directly commissioned by the local authority. This includes evaluating how the local authority ensures that placements:

meet the needs and aspirations of children and young people; provide the support they need; prepare them for their next steps; and enable them to feel valued and included in their community. Inspectors will consider whether the local authority's use of unregistered and online provision is appropriate to children and young people's needs.

63. Inspectors will gather evidence to help evaluate the experiences and outcomes of children and young people with SEND in alternative provision commissioned by the local authority. Where local authorities work with schools or trusts to commission and oversee placements, inspectors may gather and evaluate evidence about the local authority's role. In Ofsted education inspections, inspectors evaluate the experiences of children and young people in alternative provision commissioned directly by schools.

64. Section 19 of the Education Act 1996 places a duty on local authorities to arrange alternative educational provision in school or elsewhere 'for pupils who, because of exclusion, illness or other reasons, would not otherwise receive suitable education'. [\[footnote 4\]](#) The education provided under section 19 should be full time and suitable for the child, taking account of their age, ability and special educational needs (if any). Where full-time education would not be in the child's best interests for reasons relating to their physical or mental health, local authorities must arrange part-time education on whatever basis they consider to be in the child's best interests.

65. When evaluating the local authority's commissioning and oversight of alternative provision, including unregistered provision, inspectors will:

- meet local authority leaders to understand their strategy for commissioning and oversight of alternative provision
- meet local authority leaders to understand their strategic use and oversight of unregistered alternative provision
- review information provided to Ofsted by the authority about its alternative provision arrangements
- have discussions with senior leaders and special educational needs coordinators to understand the authority's processes and decision-making
- review the fair access protocols
- carry out sampling activities in one or more alternative provision settings

Legal duties

66. The area SEND framework focuses on the impact of the local area partnership's arrangements for children and young people with SEND. Its fulfilment of legal duties is part of this impact. Inspectors will not check compliance with every legal duty in relation to children and young people with SEND. However, there are legal duties underpinning our evaluation criteria. Where inspectors find that those duties are not being met, they will report on how this affects children and young people with SEND.

67. The legal duties that may be considered include duties outlined in the [SEND code of practice \(https://www.gov.uk/government/publications/send-code-of-practice-0-to-25\)](https://www.gov.uk/government/publications/send-code-of-practice-0-to-25) and in the [Department for Education \(DfE\)'s alternative provision guidance \(https://www.gov.uk/government/publications/alternative-provision\)](https://www.gov.uk/government/publications/alternative-provision-guidance).

Other areas of focus

68. Inspectors may gather evidence in relation to the oversight of children and young people with SEND who are not attending a school or alternative provision. This includes children and young people with SEND who are educated somewhere other than a school, are not on a school roll or are home educated. Examples include those who receive special education through education otherwise than at school (EOTAS) arrangements and those who are on flexi-schooling arrangements.

69. Inspectors may also consider the local area partnership's approach to improving the attendance of children and young people with SEND at education settings. Some children and young people with SEND face greater barriers to attendance than their peers and may need additional support to help them access the education they are entitled to. Overall, children and young people with SEND have lower attendance rates than their peers, on average, and this affects their future outcomes. Inspectors will also evaluate information in relation to part-time timetables and may ask for further information. The [DfE's attendance guidance \(https://www.gov.uk/government/publications/working-together-to-improve-school-attendance\)](https://www.gov.uk/government/publications/working-together-to-improve-school-attendance) explains the responsibilities of all partners, including local authorities.

70. Inspectors may consider the local area partnership's oversight and commissioning for children and young people who are placed in residential special schools, including those who are placed outside their local authority area and those who are in residential special schools for more than 295 days a year. Inspectors may evaluate how effectively the local area partnership is ensuring that these children and young people are being safeguarded, having positive experiences and achieving strong outcomes.

Safeguarding

71. Safeguarding is not a specific evaluation area, but inspectors will always consider it as part of any inspection activity. Inspectors will look at how well children and young people are helped and protected so that they are kept safe. Inspectors will follow established procedures if they receive information during the inspection that raises concerns about the safeguarding of children or young people. This includes following up concerns with the appropriate leaders in the local area.

72. [Safeguarding concerns: guidance for inspectors](https://www.gov.uk/government/publications/ofsted-safeguarding-policy/safeguarding-concerns-guidance-for-inspectors) (<https://www.gov.uk/government/publications/ofsted-safeguarding-policy/safeguarding-concerns-guidance-for-inspectors>) should be read alongside this guidance. It sets out the approach inspectors should take to inspecting safeguarding. It is essential that inspectors, local area partners, and individual providers are also familiar with, and follow, statutory guidance on safeguarding:

- ‘Keeping children safe in education: statutory guidance for schools and colleges’^[footnote 5]
- ‘Working together to safeguard children 2023’.^[footnote 6]

Part 2: How local area partnerships’ provision for children and young people with SEND will be inspected

73. This part sets out the methodology for full inspections.

How local areas are selected for inspection

74. All local areas will have a full inspection at least once during a 5-year period. The type and timing of the inspection will be based on the area’s previous inspection outcomes, as set out in [paragraphs 19 and 21](https://www.gov.uk/government/publications/area-send-framework-and-handbook/area-send-inspections-framework-and-handbook#type-and-timing) (<https://www.gov.uk/government/publications/area-send-framework-and-handbook/area-send-inspections-framework-and-handbook#type-and-timing>) of the framework. The selection of local areas to be inspected will, wherever possible, take account of the timing of other Ofsted and CQC inspection activity. Inspections will usually take place during school term time.

75. Where intelligence suggests that there are concerns about arrangements for children and young people with SEND in a particular local area, we may inspect that local area at any time.

Composition of the inspection team

76. The inspection team will be led by one of His Majesty's Inspectors (HMI) from Ofsted, and will include Children's Services Inspectors from CQC, and education and social care inspectors from Ofsted.

77. Ofsted and CQC may vary the composition and size of the inspection team. We will base this decision on several factors, including the complexity of the local SEND system, and the size and nature of the geographical area.

78. At times, other Ofsted and CQC inspectors may visit on site, to shadow the work of the inspection team. This is done for training, development and quality assurance purposes only. Any activities carried out by these inspectors will not form part of the evidence gathered by the inspection team or contribute in any way to the team's evaluation.

Overview of the inspection

79. Area SEND full inspections will follow the structure set out below. The lead inspector will provide a detailed timeline when they notify leaders in the local area of the inspection.

80. Inspection activities are structured to enable inspectors to draw together evidence from across education, health and care services and form a connection between the different findings to reach an inspection outcome. Inspectors will use their evaluation of children and young people's experiences and outcomes to build a picture of the impact of the local area's SEND arrangements. During the inspection, inspectors will need to speak to a range of people. They will do so in line with our code of conduct, and act at all times with professionalism, courtesy, empathy and respect. Inspectors should take careful account of the well-being of leaders and staff. They should adjust their approach or activity, as appropriate, as they go about their inspection work. If inspectors see or suspect that a staff member (including all leaders) is upset or distressed at any point during the inspection, inspectors should respond sensitively. Where appropriate, inspectors will consider suitable adjustments to enable the staff member to continue. Where there are serious concerns, inspectors will normally contact the duty desk and inform those responsible for the person's well-being. There may be exceptional occasions when we need to consider

pausing an inspection. We will consider these on a case-by-case basis according to our published guidance on [pausing inspections](https://www.gov.uk/guidance/pausing-state-funded-school-inspections) (<https://www.gov.uk/guidance/pausing-state-funded-school-inspections>).

Activities in week 1

- Inspectors notify the local area leaders of the inspection 8 working days before the fieldwork begins and 10 working days before coming on site. This will usually be on a Monday, but may be in the previous week if there is a bank holiday in week 1 or 2 of the inspection.
- Inspectors request information to support the inspection (this information is set out in [Annex A](https://www.gov.uk/government/publications/area-send-framework-and-handbook/area-send-inspections-framework-and-handbook#annex-A) (<https://www.gov.uk/government/publications/area-send-framework-and-handbook/area-send-inspections-framework-and-handbook#annex-A>) of this guidance).
- Inspectors and local area leaders hold a set-up discussion (this is carried out virtually).
- The local area partnership distributes links to the surveys for children and young people with SEND, parents and carers, and practitioners (please see [paragraph 90](https://www.gov.uk/government/publications/area-send-framework-and-handbook/area-send-inspections-framework-and-handbook#SEND-surveys) (<https://www.gov.uk/government/publications/area-send-framework-and-handbook/area-send-inspections-framework-and-handbook#SEND-surveys>)) for additional information.
- We will update [our information about ongoing area SEND inspections page](https://www.gov.uk/government/publications/local-area-send-inspections-information-for-families) (<https://www.gov.uk/government/publications/local-area-send-inspections-information-for-families>) with details of the inspection, including a link to the survey.
- The local area partnership shares information to support the inspection.
- Inspectors select individual children and young people, and ask the local area partnership to set up tracking meetings.
- Inspectors carry out planning and pre-inspection analysis.

Activities in week 2

- Inspectors work with the local area partnership to agree an inspection timetable.
- Inspectors hold tracking meetings (please see [paragraph 100](#) for additional information).
- Inspectors carry out pre-inspection analysis and review the information set out in [Annex A](https://www.gov.uk/government/publications/area-send-framework-and-handbook/area-send-inspections-framework-and-handbook#annex-A) (<https://www.gov.uk/government/publications/area-send-framework-and-handbook/area-send-inspections-framework-and-handbook#annex-A>).
- Inspectors may meet virtually with local leaders, staff, representative groups and stakeholders.

Activities in week 3

- Inspectors gather evidence on site, including sampling visits, focused sampling and meetings with children and young people, families and

representative groups.

- Inspection findings fed back to the local area partnership.

Including the views of children and young people and families during the inspection

81. The inspectors will gather evidence directly from children and young people and their families during the inspection. Inspectors will form their initial lines of enquiry by gathering evidence about recent experiences from:

- inspection surveys
- tracking meetings with children, young people, parents, carers and practitioners
- meetings with representative groups and local area leaders

82. Inspectors will continue to consider the views of children, young people and their families about their recent experiences as they test their initial lines of enquiry and gather further evidence to evaluate the broader framework through activities, including:

- sampling visits across a range of settings and providers within the local area – during these visits, inspectors will sample the experiences and outcomes of children and young people across education, health and care; inspectors may contact families whose records have been sampled during the inspection week to seek their views
- focused sampling to look specifically at certain areas of SEND – during focused sampling, inspectors may speak with children and young people, families and practitioners to gather evidence
- meet with stakeholders, which may include the parent carer forum, children, young people and family representative groups and providers from other services

Inspectors will use these inspection activities to hear about recent experiences directly from children, young people, families and practitioners to understand the impact of the local area's commissioning arrangements on their experiences and outcomes (see [paragraphs 43 to 47](#)).

Pre-inspection activity

83. Ofsted and CQC inspectors will review relevant information held by the inspectorates about the local area arrangements for children and young people with SEND. This will include previous inspection outcomes and any WSoA that an area was required to produce under the previous framework.

Week 1: notification, set-up and information request

Notification

84. On day 1 (10 working days before the on-site evidence-gathering), inspectors will contact the relevant leaders in the local area to notify them of the inspection:

- Ofsted will notify the director of children's services (DCS)
- CQC will notify the chief executive of the ICB

85. Each local area will be asked to nominate a representative – a local area nominated officer (LANO) – who will act as a single point of contact on behalf of the local area partnership throughout the inspection. If the LANO is a representative of the ICB, the local area must also nominate a representative from the local authority. Alternatively, if the LANO is a representative of the local authority, the local area must also nominate a representative from the ICB. Their roles will be to liaise with the lead inspector throughout the inspection, so that inspection activities can be coordinated effectively.

86. While it is important that we carry out our planned inspections wherever possible, sometimes there may be reasons why a planned inspection may not go ahead. Ofsted and CQC will only defer the inspection of a local area in exceptional circumstances. If a local area partnership has a concern about the timing of an inspection, it may submit a deferral request in line with [Ofsted's deferral policy \(https://www.gov.uk/guidance/deferring-ofsted-inspections\)](https://www.gov.uk/guidance/deferring-ofsted-inspections).

Set-up discussion

87. Once the inspection has been confirmed, the lead inspector and CQC inspector will make an extended telephone call to the LANO and the ICB representative. The lead inspector will make it clear that the LANO and the ICB representative are encouraged to have someone present during the call to assist and support them if they wish. This should be at least one other senior leader who typically deputises for them and can understand and discuss the content of the call. The purpose of this call is to:

- check on the leaders' well-being and whether any steps need to be taken to ensure any issues or concerns are addressed, including that appropriate support is available. The lead inspector should ascertain how to contact whoever is responsible for the leaders' well-being on a day-to-day basis, so that they can pass on well-being concerns if appropriate and necessary
- discuss the arrangements for the inspection, including the timetable of activities, arrangements for talking to children, young people and their

families, the key officers and representatives to involve in specific meetings, and arrangements for giving regular feedback and having discussions regarding the emerging findings of the inspection

- discuss the arrangements for distributing the survey links to children, young people, parents, carers, and practitioners
- discuss the information requested for the inspection ([Annex A \(https://www.gov.uk/government/publications/area-send-framework-and-handbook/area-send-inspections-framework-and-handbook#annex-A\)](https://www.gov.uk/government/publications/area-send-framework-and-handbook/area-send-inspections-framework-and-handbook#annex-A))
- ask that the key stakeholders involved in arrangements for children and young people with SEND and the commissioning of alternative provision are made aware of the inspections, including providers, services, parents and carers
- provide an opportunity for leaders to raise any issues or concerns, or to seek clarification before the inspection, and explain how the local area partnership will be able to raise any matters during the inspection itself
- provide an opportunity for leaders to discuss and/or give inspectors information on potential equality duties, including reasonable adjustments for individuals

Information request (Annex A)

88. [Annex A \(https://www.gov.uk/government/publications/area-send-framework-and-handbook/area-send-inspections-framework-and-handbook#annex-A\)](https://www.gov.uk/government/publications/area-send-framework-and-handbook/area-send-inspections-framework-and-handbook#annex-A) sets out the information inspectors will request and the timeline for the local area partnership to share it. Any evidence submitted should be a part of the local area partners' routine business and not produced solely for inspection.

89. Inspectors may ask for additional information not set out in [Annex A \(https://www.gov.uk/government/publications/area-send-framework-and-handbook/area-send-inspections-framework-and-handbook#annex-A\)](https://www.gov.uk/government/publications/area-send-framework-and-handbook/area-send-inspections-framework-and-handbook#annex-A), and may agree to look at additional information provided by the area partners. Any additional information must be:

- necessary for an accurate understanding of children and young people's experiences and outcomes in relation to the scope of the inspection
- part of the local area partners' business as usual and not produced solely for inspection

Arrangements for surveys

90. Inspectors will share 4 surveys: one for children and young people with SEND, one for parents and carers, an Easy Read version of the parent and carer survey and one for practitioners. The purpose of these surveys is for people to share their recent experiences with the inspection team to support inspectors when developing initial lines of enquiry. The questions have been developed with children and young people's groups, parent carer forums, and local area leaders and practitioners.

91. The surveys will go live on the day the local area is notified of the inspection. They will remain live for 6 working days from the notification day. On the day of notification, local area partnerships should arrange for survey links to be sent to all children and young people with SEND in their local area, their parents and carers, and made available to all settings and services working with children and young people with SEND. We will also update [our information about ongoing area SEND inspections page](https://www.gov.uk/government/publications/local-area-send-inspections-information-for-families) (<https://www.gov.uk/government/publications/local-area-send-inspections-information-for-families>) with links to our inspection survey once we notify. Inspectors will ensure that they work with the local area partnership to consider accessibility issues, including making paper copies available on request.

Selecting children and young people for tracking meetings

92. During week 1, inspectors will select approximately 6 children and young people to be involved in tracking meetings. These are meetings with children and young people, their parents or carers (if appropriate) and the practitioners who are directly involved with them. The meetings are for inspectors to hear about children and young people's experiences and outcomes. Tracking meetings will help inspectors to establish initial lines of enquiry before they begin their on-site activity.

93. When selecting the children and young people to track, inspectors will take into account: information shared by the local area partnership; the demographic make-up of the local area, including protected characteristics defined by the Equality Act 2010; and any contextual issues specific to the local area. They will choose children and young people with a range of needs, who access a range of services, from a range of age groups and who are at different stages in their education and/or involvement with health and social care services. The scope is children and young people for whom the local authority is responsible. This includes children and young people with an EHC plan for whom the local authority is responsible but who are educated outside the local authority area. It also includes those who have been placed in children's homes and educational establishments out of area. However, the scope does not cover children and young people who live in other areas but attend education within the local area boundaries.

94. Inspectors will usually include at least 1 child or young person who is studying in alternative provision, and at least 2 children who are receiving SEN support. Inspectors will include a few children receiving social care support and this may include a child placed out of the local area. Inspectors will usually include at least one child or young person whose needs are in each of the 4 categories of need: communication and interaction; cognition and learning; social, emotional and mental health difficulties; sensory and/or physical needs.

95. Once children and young people have been selected, the LANO will:

- arrange for a practitioner who knows the child or young person well to approach them, and their parents or carers, for their agreement to be involved
- share information about the child or young person as outlined in [Annex A \(https://www.gov.uk/government/publications/area-send-framework-and-handbook/area-send-inspections-framework-and-handbook#annex-A\)](https://www.gov.uk/government/publications/area-send-framework-and-handbook/area-send-inspections-framework-and-handbook#annex-A)
- arrange tracking meetings with children and young people, their parents and carers
- arrange a multi-disciplinary tracking meeting with practitioners who work with the child or young person

Week 2: off-site analysis and creating an on-site timetable

Off-site analysis

96. Inspectors will review the information requested from the local area partners outlined in [Annex A \(https://www.gov.uk/government/publications/area-send-framework-and-handbook/area-send-inspections-framework-and-handbook#annex-A\)](https://www.gov.uk/government/publications/area-send-framework-and-handbook/area-send-inspections-framework-and-handbook#annex-A).

Creating the inspection timetable

97. The Ofsted lead inspector will coordinate the creation of a timetable for gathering evidence off site in week 2, and on site in week 3. They will work jointly with the lead inspector from CQC to liaise with the LANO and the ICB representative to help create the timetable. This will include arrangements for meeting with practitioners, managers and leaders to discuss their work. Inspectors will also make arrangements for keep-in-touch and feedback meetings to share inspectors' findings.

98. When creating the timetable, the Ofsted lead inspector and CQC lead inspector will:

- consider which activities should be carried out in person, and which should be carried out by phone or video call
- include enough time for inspectors to travel between appointments
- include time for inspectors to review and analyse their evidence, individually and together
- ensure that the timetable is flexible enough to be changed in response to emerging findings
- work with the LANO and ICB representative to ensure that local leaders and practitioners are aware of the timetable and any changes to it

99. The inspection team will meet during week 2 to discuss the plan for the inspection and any matters arising from their off-site analysis.

Weeks 2 and 3: meetings with children, young people, parents and carers and practitioners

Tracking meetings with children, young people, parents and carers

100. Inspectors will use tracking meetings to gather evidence of the impact of the local area partnership's strategy and commissioning on individual children and young people with SEND. Tracking meetings enable inspectors to understand specific children and young people's experiences and journeys through the SEND system. Inspectors will look at the impact of the local area partnership's SEND arrangements on the experiences and outcomes of children and young people, including how decisions have been made, how children, young people and their families have been involved and whether they have received the right help at the right time. Tracking meetings will help inspectors to identify lines of enquiry they wish to review through the range of inspection activities.

101. Inspectors will discuss the child or young person's experiences with them. Inspectors will ask the LANO and ICB representative to work with practitioners and families so as to understand how inspectors can best support the child or young person to share their experiences. Inspectors may also discuss children and young people's experiences with their parents and/or carers, either together with or separately from their child, depending on the age of the child or young person and the family's preferences.

Tracking meetings with practitioners

102. Inspectors will have a multi-agency tracking meeting with the child or young person's health, social care and education professionals, and any other practitioners involved. Where relevant, this may include providers of commissioned services (for example, practitioners working directly with the child or young person at their children's home or through children and young people's mental health services) or other services that may be relevant to understanding the child or young person's experience. The lead inspector will ask the LANO and ICB representative to ensure that the practitioners involved in the meeting include any staff who coordinate the child or young person's overall plan of support, or who have the greatest awareness of it and know the child. Leaders and/or practitioners may always be accompanied by a colleague of their choice when speaking to inspectors if they wish. However, it is important that they can express their views freely to inspectors.

103. Inspectors may discuss children and young people's records with practitioners, using their knowledge of the child or young person, file structure and recording systems. They may also consider any case supervision notes. Where children and young people's case records are held wholly or partly electronically, the service should arrange for identified inspectors to have secure access to the electronic system. This activity will be carried out in line with Ofsted's [privacy notice](https://www.gov.uk/government/publications/ofsted-privacy-notice) (<https://www.gov.uk/government/publications/ofsted-privacy-notice/social-care-ofsted-privacy-notice#local-area-send-inspections>) and CQC's [privacy notice](https://www.cqc.org.uk/about-us/our-policies/privacy-statement) (<https://www.cqc.org.uk/about-us/our-policies/privacy-statement>).

104. Inspectors will base their findings on contemporary practice that has an impact on the child or young person's current situation. However, they will also review some historical information to understand the child or young person's journey.

Discussions with children and young people

105. Inspectors will also meet with children and young people during week 2 of the inspection. Inspectors may also arrange to contact or meet with additional children and young people to discuss relevant lines of enquiry, discuss their individual experiences or seek their views on a specific aspect of the local area's arrangements throughout the inspection, including during sampling and focusing visits. These discussions will support the inspectors to:

- understand the experiences and outcomes of the child or young person
- understand how the local area partnership engages with children and young people, and the impact this engagement has
- identify any common themes that will contribute to lines of enquiry for the inspection
- discuss their views on effective practice and how the local area partnership could improve its arrangements for children and young people with SEND

Discussions with parents and carers

106. Inspectors will contact or meet with parents and carers during the inspection to:

- understand the impact on their child of the local area's SEND arrangements
- understand the impact on the wider family
- identify effective practice and how arrangements could be improved
- gain more information about specific lines of enquiry

Discussions with parent and carer representative groups

107. Inspectors will meet remotely with representatives from the parent carer forum and/or other representative groups of parents and carers in week 2 of the inspection. Lead inspectors may contact the local area partnership, the DfE and regional NHS England (NHSE) officials before the inspection to agree which relevant representative groups inspectors will contact. This is to:

- identify any common themes that contribute to developing lines of enquiry for the inspection
- discuss their views on effective practice and how the local area partnership could improve its arrangements for children and young people with SEND

Week 3: focused sampling of decision-making and oversight

108. Inspectors will evaluate the decision-making processes and oversight, including those related to legal duties, for specific groups of children and young people with SEND, by sampling from these groups with officers from the local area partnership.

109. Inspectors will ask to discuss a selection of children and young people's experiences with one or two officers who know the child and are directly involved in the decision-making and oversight of their support. Leaders and/or practitioners may always be accompanied by a colleague of their choice when speaking to inspectors if they wish. However, it is important that they can express their views freely to inspectors.

110. Inspectors will choose which children and young people they want to discuss. They may do this before the meeting, using the information provided by the local area partnership. Alternatively, they will ask the officers to show them records based on certain criteria, and will choose the children and young people with officers during the meeting.

111. Topics that may be a subject for focused sampling include the decision-making and oversight of the quality of EHC plans, fair access protocols, and use of the dynamic support register. Inspectors may also use focused sampling to review the local area partnership's oversight of particular groups of children and young people with SEND, for example those who have high rates of absence from school, are EOTAS, are known to the youth justice service, are not on a school roll or are home educated.

112. Inspectors may ask to speak to children, young people and/or their families who have been identified during a focused sampling exercise.

Week 3: sampling visits to providers and services

113. Inspectors will visit a number of providers and services across education, health and social care to review the experiences of a wider group of children and young people, in line with their specific lines of enquiry. These visits are not to directly inspect the quality of provision, as these providers are subject to other inspection arrangements. Leaders and/or practitioners may always be accompanied by a colleague of their choice when speaking to inspectors if they wish. However, it is important that they can express their views freely to inspectors.

114. These sampling visits enable inspectors to review the impact of the local area partnership's arrangements on a larger group of children and young people with SEND. Inspectors will evaluate children and young people's experiences and outcomes by reviewing documents and talking to practitioners.

115. Ofsted and CQC will select providers and services to visit, and will discuss their suitability with the LANO and the ICB representative. The lead inspector will provide the LANO with notification letters to send to the chosen education, health and care providers. The LANO will set up the visits and arrangements for case sampling.

116. During sampling visits, inspectors will visit a specific provider or service and ask for information about individual children and young people's experiences. These may include children and young people who have a specific need, who are receiving a specific service and/or who are at a particular point in their education with a range of health and care needs.

117. Inspectors will choose the children and young people. They may do this before the visit, using the information provided by the local area partnership. Alternatively, they will ask practitioners to show them records based on certain criteria established from the lines of enquiry, and will choose the children with practitioners during the visit.

118. Inspectors will look at any documents relating to the children and young people, and will discuss their experiences and outcomes with the practitioners in that provision or service. Inspectors may also look at case supervision notes. Where case records are held wholly or partly electronically, the provider should arrange for the inspectors to have secure access to the electronic system.

119. Inspectors sampling in education settings will include children and young people receiving SEN support. This may include meeting children and young people and, if appropriate, reviewing files and talking to practitioners. These visits may include early years settings, schools,

colleges, alternative provision and specialist services. The scope of the inspection covers children and young people who live in the local authority area, including those educated out of area. However, it does not cover those who live in other areas but attend an education setting within the local authority's boundaries.

120. Inspectors sampling in health providers and services will gather evidence of the assessment, intervention and transition stages of health support. These visits will include universal, targeted and specialist health teams, such as speech and language therapy services and children and young people's mental health teams.

121. Inspectors sampling in social care will consider the identification, assessment, intervention and transition stages of social care support. This may include visits to services such as the disabled children's team, early help services and adult social care teams.

122. Findings will be based on contemporary practice, and on practice that has an impact on the child or young person's current situation. However, they will also review some historical information to understand the child or young person's journey.

123. Inspectors may ask to speak to children, young people and/or their families during the sampling visit.

Week 3: inspection team meetings

124. The inspection team will meet at different points during the 5 on-site days, and remotely during the 2 working days before being on site. In particular, the team should, as far as is practicable, meet each day to discuss and record emerging findings and ensure that the lead inspector has the most recent evaluative information to feed back to the LANO and the ICB representative.

125. During the final team meeting, inspectors will summarise the key evidence and share final evaluative outcomes. The main points for feedback to the local area partners will be recorded as the meeting progresses, including the overall inspection outcome, strengths, recommendations for improvement and any areas for priority action.

Week 2 and 3: meetings with leaders

Initial meeting with leaders

126. The lead inspector and CQC inspector should meet with the LANO, ICB representative and other colleagues, as agreed by the lead inspector and the LANO and the ICB representative, before on-site activity begins.

127. At this first meeting, the LANO, ICB representative and other colleagues will share information on the local area partnership's context.

Meeting to discuss the local area partnership's self-evaluation and strategic planning

128. The lead inspector, the LANO and ICB representative will arrange a meeting with leaders on the first day on site, to review the local area partnership's self-evaluation, strategy and associated action plans.

129. This meeting should include the following people:

- the DCS and elected member with specific responsibilities for SEND
- the LANO
- the ICB representative
- representatives of the parent carer forum
- senior managers responsible for the strategic development and operational management of education, health and social care provision for children and young people with SEND; this may include the designated clinical officer and/or the community health provider strategic lead
- senior local authority manager responsible for the commissioning and oversight of alternative provision
- a colleague chosen by the DCS, the ICB representative or the LANO, if they wish, such as another senior leader who typically deputises for them and can understand and discuss the content of the meeting (optional)

Keep-in-touch meetings

130. At the heart of our inspections is a professional dialogue between inspectors and leaders. The lead inspector will establish keep-in-touch meetings at key points during the inspection. This will enable the inspection team to feed back to the DCS, the ICB representative and the LANO on findings from inspection activity, any emerging lines of enquiry, identify any additional evidence required, answer any questions and make changes to the timetable if necessary. The DCS, the ICB representative and the LANO may always be accompanied by a colleague of their choice, if they wish, such as another senior leader who typically deputises for them and can understand and discuss the content of the meetings.

131. The local area partnership is responsible for providing evidence of the impact of its arrangements for children and young people with SEND. This includes the local area partnership providing appropriate information and data, such as any analysis of the experiences and outcomes of children and

young people with SEND in its local area. It also includes opportunities to meet relevant managers and other local area representatives.

132. The local authority is responsible for providing evidence of its arrangements for commissioning and overseeing alternative provision for children and young people in its area.

133. Inspectors may also work with the LANO and the ICB representative to arrange additional meetings with leaders and/or practitioners throughout the on-site inspection. This will enable inspectors to discuss specific lines of enquiry or information that they have gathered through tracking meetings or sampling visits. Leaders and/or practitioners may always be accompanied by a colleague of their choice when speaking to inspectors if they wish. However, it is important that they can express their views freely to inspectors.

The final feedback meeting

134. The inspection concludes with a final feedback meeting attended by representatives from the local area, and the DfE and regional NHSE officials. Attendance is voluntary and any attendee may leave at any time, including leaving for a short time and then returning. If the feedback is likely to be challenging or is likely to raise difficult issues, the lead inspector will be sensitive to any implications arising from this. The lead inspector will liaise with the DCS and the ICB representative, through the LANO, to agree who attends this meeting. However, we expect the attendees to include:

- the chief executive officer or leader of the council
- the DCS and elected member with responsibility for SEND from the local authority
- the LANO
- the ICB representative
- the parent carer forum representatives
- a colleague that the DCS, chief executive officer or council leader, the ICB representative and the LANO has chosen to accompany them (optional)
- DfE and regional NHSE officials who are the primary contacts for the local area

135. During the final feedback meeting, the lead inspector will ensure that all attendees are clear:

- about inspectors' evaluation of the local area partnership's effectiveness in improving the experiences and outcomes of children and young people with SEND

- about the inspection outcome and resulting time frame for the next inspection activity
- about any areas of widespread and/or systemic failings identified as areas for priority action that will result in the requirement for a priority action plan (area SEND) and in further monitoring
- that any safeguarding concerns identified during the inspection have already been fed back to senior leaders and/or acted on
- that all feedback remains confidential to those present at the meeting, until the local area receives their final report
- that, on receiving the draft report, the local area partnership must ensure that the report remains restricted and confidential to the relevant personnel and should not be shared more widely or published. Leaders may share inspection outcomes, in confidence, with others, provided the information is not made public. This may include leaders' colleagues, family members, medical advisers and/or their wider support group
- that, in addition to being able to raise concerns at any stage during the inspection, the local area partnership has an opportunity to raise any issues or concerns or to seek clarification about the inspection, and can also contact Ofsted after the end of the inspection, if needed

After the inspection

Arrangements for publishing the report

136. The lead inspector is responsible for writing the inspection report, with contributions from the full inspection team across education, health and care, and submitting the evidence shortly after the inspection ends. Findings and inspection outcomes are reached jointly by the inspection team and the report is published by both Ofsted and CQC.

137. The text of the report should explain the outcomes and reflect the evidence. The findings should be consistent with the feedback given to the local area at the end of the inspection, but are likely to be a succinct account.

138. Inspection reports will be quality assured before we send a draft to the local area. In most circumstances, the local area will receive the draft report within 14 working days of the end of the inspection. The draft report is restricted and confidential to the relevant personnel, and should not be shared more widely or published.

139. The local area will have 10 working days to comment on the draft report. The local area can highlight minor points relating to the clarity and/or factual accuracy of the report, or it can submit a formal complaint seeking a

review of the inspection process, including the judgement made or concerns about inspector conduct (see paragraph 140). If it only submits minor points of clarity or factual accuracy, we will respond to these when we share the final report with the local area. This will normally be within 30 working days of the end of the inspection.

140. If the local area wishes to make a formal complaint, we will follow the process set out in our published Ofsted [complaints procedure](https://www.gov.uk/government/organisations/ofsted/about/complaints-procedure) (<https://www.gov.uk/government/organisations/ofsted/about/complaints-procedure>) or [CQC complaints procedure](https://www.cqc.org.uk/contact-us/how-complain/complain-about-service-or-provider) (<https://www.cqc.org.uk/contact-us/how-complain/complain-about-service-or-provider>). We will respond to any complaint before we finalise and send the report to the local area. If the local area has previously chosen to highlight some minor points of clarity or factual accuracy on the draft inspection report (see paragraph 139), it will not normally be able to submit a formal complaint or challenge later. We will normally publish the report on our [reports website](https://reports.ofsted.gov.uk/) (<https://reports.ofsted.gov.uk/>) 5 working days after sending it to the local area.

141. Once a local area has received its final report, relevant recipients of the report are required to publish it on their organisation's website and supply a copy to a member of the public, on demand, for a reasonable charge.^[footnote 7] The local area partnership should ensure that the parent carer forum receives a copy of the report.

142. As required by The Children Act 2004 (Joint Area Reviews) Regulations 2015, Ofsted and CQC will disseminate the report to:

- the Secretary of State for Education
- the Secretary of State for Health and Social Care
- the local authority for the area inspected
- the principal authority that is responsible for making the action plan, if HMCI has determined that the principal authority is different from the local authority
- any other people or organisations HMCI considers appropriate for the nature of the inspection

143. In all cases, the inspection process should not be regarded as complete until all inspection activity has been carried out and the final version of the inspection report has been sent to the local area.

144. The evidence base for the inspection must be retained in line with Ofsted's retention and disposal policy. We may decide that retaining it for longer is warranted for research purposes. The evidence base for CQC will also be retained in line with CQC's retention and disposal policy.

Requirement for local area partnerships to produce a priority action plan (area SEND)

145. If the inspection finds that there are widespread and/or systemic failings leading to significant concerns about the experiences and outcomes of children and young people with SEND, then the local area partnership is required to develop and publish a priority action plan (area SEND).

146. The inspection report will name the principal authority responsible for making the priority action plan. The principal authority may be the local area partnership as a whole or one particular partner. The DfE and regional NHSE will work with local area partnership officials to offer support and challenge when they are developing a priority action plan.

147. The principal authority should aim to submit the priority action plan (area SEND) to the DfE and regional NHSE within 35 working days from the date that the local area partnership receives the final report. The DfE and regional NHSE then review whether the priority action plan (area SEND) meets the criteria outlined in paragraph 148.

148. The priority action plan (area SEND) must include:

- the local area partnership's proposed measures to address the areas for priority action identified in the inspection report
- the responsible partner for each proposed action
- the period within which the action is to be taken

149. Following feedback on the priority action plan (area SEND), the DfE, regional NHSE, Ofsted and CQC ask that the principal authority, and any other local area partners who were involved in making the priority action plan (area SEND), should aim to publish the plan, as a section within their updated strategic plan, within 50 working days from the date that the local area partnership receives their final report. The principal authority must supply a copy to a member of the public on demand (a reasonable charge may be specified for this) and share a copy with Ofsted and CQC.

Request for local area partnerships to update their strategic plans

150. We ask all local area partnerships to update and publish their strategic plans after a full inspection. The plan should include the action the

partnership is taking, or will take, in response to the recommendations made in the inspection report. This strategic plan should set out the local area partnership's SEND strategy and how the local area partnership will deliver the strategy. Local area partnerships may update existing plans or choose to produce new plans.

151. Local area partnerships should aim to update their strategic plans within 50 working days from the date they received their final report. They should follow the recommendations in the inspection report, and are expected to engage with all partners and stakeholders when deciding what actions they need to take.

152. All strategic plans and priority action plans (area SEND), including those produced as described in [paragraphs 145 to 150](#) (<https://www.gov.uk/government/publications/area-send-framework-and-handbook/area-send-inspections-framework-and-handbook#priority-action-plan>), should be published in a way which ensures that they are accessible to children and young people with SEND, and their parents and carers.

Quality assurance and complaints

Quality assurance

153. All inspectors are responsible for the quality of their work. The lead inspector must ensure that inspections are carried out in accordance with the principles of inspection and [the Ofsted code of conduct](#) (<https://www.gov.uk/guidance/conduct-during-ofsted-inspections>).

154. We monitor the quality of inspections through a range of formal processes, and HMI/senior HMI and Children's Services Inspectors from CQC may be on site in some local areas, or may monitor remotely, to quality assure inspections. We may also evaluate the quality of an inspection evidence base. The lead inspector will be responsible for giving Ofsted team inspectors feedback on the quality of their work and their conduct. The CQC lead inspector will be responsible for giving CQC team inspectors feedback on the quality of their work and their conduct. In very rare circumstances, if we find a weakness in the inspection process, we may carry out a further visit to [gather additional evidence](#) (<https://www.gov.uk/government/publications/gathering-additional-evidence-to-secure-an-incomplete-inspection>).

155. Additionally, quality assurance inspectors from CQC may either join inspectors on site or provide off-site quality assurance of area SEND inspection activity.

156. All local areas are invited to take part in a voluntary post-inspection survey in order to contribute to our ongoing improvement of our inspection

work. The link to this survey is provided when the local area receives the final copy of its inspection report.

Handling concerns and complaints

157. The great majority of our work is carried out smoothly and without incident. If concerns do arise during the inspection, they should be raised with the lead inspector as soon as possible, in order to resolve issues before the inspection is completed. Any concerns raised, and actions taken, will be recorded in the inspection evidence. If there is any concern that is not possible to resolve with the lead inspector during the inspection, the local area partnership can contact a senior Ofsted leader using the number provided during the notification process. In exceptional circumstances, this might lead to the inspection being paused (see published guidance on [pausing inspections \(https://www.gov.uk/guidance/pausing-state-funded-school-inspections\)](https://www.gov.uk/guidance/pausing-state-funded-school-inspections)).

158. If an issue remains unresolved, the local area partnership can contact Ofsted after the end of the inspection. This will be an opportunity for the local area partnership to raise informal concerns about the inspection process or outcomes, ask about next steps or highlight information that they feel was not fully considered during the inspection. This will be directed to an inspector who is independent of the inspection, to discuss and to resolve, where appropriate, at the earliest opportunity.

159. If it is not possible to resolve concerns during the inspection or through a telephone call after the inspection, the local area partnership may wish to lodge a formal complaint when it receives the draft report. The lead inspector will ensure that the local area partnership is informed that it is able to make a formal complaint, and that [information about how to complain \(https://www.gov.uk/government/organisations/ofsted/about/complaints-procedure\)](https://www.gov.uk/government/organisations/ofsted/about/complaints-procedure) is available on GOV.UK.

Part 3: Monitoring inspections

160. Ofsted and CQC will carry out monitoring inspections in local areas that were found, at a full inspection, to have widespread and/or systemic failings and were required to produce a priority action plan (area SEND). Monitoring inspections will be carried out around 18 months from the date when the local area partnership received its final report following the full inspection.

161. The purpose of the monitoring inspection is to assess the extent to which the local area partnership is taking effective action to address the areas for priority action set out in the inspection report. Inspectors will tailor their enquiries and evidence-gathering to focus on the areas for priority

action that were identified at the full inspection. If inspectors identify any new, widespread and/or systemic failings during the monitoring inspection, the monitoring inspection outcome letter will refer to these.

162. The monitoring inspection will always be led by an Ofsted HMI, accompanied by a Children's Services Inspector from CQC. The team will normally be made up of inspectors from education, health and social care.

163. Ofsted and CQC may vary the composition and size of the inspection team. We base this decision on several factors, including the complexity of the areas for priority action, and the size and nature of the geographical area covered by the ICB.

164. Inspectors will carry out activities that are similar to those carried out during full inspections. These include, but are not limited to, discussions with leaders; sampling children and young people's experiences during visits to education, health and social care providers; and holding meetings with children and young people, parents and carers, practitioners and leaders.

165. Inspectors will take account of:

- any action taken by leaders, since the initial inspection, to address the areas for priority action
- evidence provided by the local area partnership that shows how leaders have assured themselves that the necessary action is being taken for children and young people against each area of priority action
- any self-evaluation carried out by the local area partnership
- the views of children and young people and their parents and carers, gathered through inspection activity such as sampling activities, and discussions with children and young people with SEND

166. Ofsted and CQC retain the discretion to carry out a monitoring inspection in any local area if information held, or received, by Ofsted and/or CQC raises sufficient concern about the effectiveness of arrangements for children and young people with SEND and their families. This may be carried out in a local area that was not previously required to produce a priority action plan (area SEND). In such cases, inspectors will gather evidence that is relevant to the issues that gave rise to the decision to inspect.

Arrangements for monitoring inspections

Weeks 1 and 2: notification, set-up and information request

167. The process for notifying the local area is the same as for full inspections (see [paragraph 84](#) (<https://www.gov.uk/government/publications/area-send-framework-and-handbook/area-send-inspections-framework-and-handbook#notification>)). On the same day as the notification to the local area, the lead inspector will also notify the parent carer forum or other parents' groups involved in the priority action plan (area SEND), if known. The Ofsted lead inspector will handle any deferral requests, as set out in [paragraph 86](#) (<https://www.gov.uk/government/publications/area-send-framework-and-handbook/area-send-inspections-framework-and-handbook#deferrals>).

Set-up discussion

168. Following notification, the Ofsted lead inspector and CQC inspector will contact the LANO and the ICB representative. The inspectors will encourage the LANO and the ICB representative to have someone present during the call to assist and support them if they wish. This should be at least one other senior leader who typically deputises for them and can understand and discuss the content of the call. The purpose of this call is to:

- check on the leaders' well-being and whether any issues or concerns need to be addressed, including to make sure appropriate support is available. The lead inspector should establish how to contact whoever is responsible for the leaders' well-being on a day-to-day basis, so that they can pass on well-being concerns if appropriate and necessary
- to arrange for any relevant up-to-date information to be made available to inspectors before the on-site week; this will include the current version of the priority action plan (area SEND) and the local area's strategic plan
- discuss the arrangements for the inspection, including the timetable of activities; arrangements for talking to children, young people and their families; the key officers and representatives to involve in specific meetings; and arrangements for giving regular feedback and discussing the emerging findings of the inspection
- discuss the information requested for the inspection ([Annex A](#) (<https://www.gov.uk/government/publications/area-send-framework-and-handbook/area-send-inspections-framework-and-handbook#annex-A>))
- ask that the key stakeholders involved in arrangements for children and young people with SEND and the commissioning of alternative provision are made aware of the inspections, including providers, services, parents and carers
- provide an opportunity for leaders to raise any issues or concerns, or to seek clarification before the inspection, and explain how the local area partnership will be able to raise any matters during the inspection itself
- provide an opportunity for leaders to discuss and/or give inspectors information on potential equality duties, including reasonable adjustments for individuals

169. The local area partnership is responsible for providing the monitoring inspection team with any relevant data/information. Any data requested must only be what the local area partnership produces as part of its routine work or as set out in Annex A. The inspection team will tell the partnership what data they require from Annex A. We do not expect the inspection team to require all of the data set out in Annex A but only data relevant to the areas for priority action that were set out in the full inspection report. We do not expect the local area partnership to provide any data or information in a particular format.

170. The local area partners should provide evidence to show how they have assured themselves that they are addressing the areas for priority action that were identified in the full inspection report. Evidence should include how the local area partnership has involved children and young people with SEND and their families in their actions. This should include how the partnership has ensured that the voices, experiences and outcomes of children and young people with SEND remain a focus of its actions.

171. Inspectors will review the uploaded evidence and arrange a telephone call with the LANO and the ICB representative. This will be to discuss the schedule for the monitoring inspection, including the evidence-gathering activities deemed appropriate by the inspection team to explore what the local area partnership is doing to address identified areas for priority action. They will also discuss other practical arrangements, such as who should attend meetings.

172. The lead inspector and CQC inspector will also hold a discussion with the officials from the DfE and regional NHSE about any support they have given the local area partnership to address the areas for priority action. All discussions must be recorded in the evidence base.

Inspectors will meet remotely with representatives from the parent carer forum and/or, when appropriate, another representative group of parents and carers at the start of the inspection. This is to:

- establish their views on whether the local area partnership has taken effective action to address the areas for priority action
- understand how parent/carers groups have been involved in the developments and in monitoring the priority action plan

Inspectors may also meet with representative groups of children and young people to understand how the local area partnership has engaged with them in addressing the areas for priority action.

The on-site week

173. Typically, inspectors will spend a minimum of 2.5 days on site, although this may vary depending on the circumstances of the local area. Inspectors and local areas will discuss and agree on the precise timing of activities.

174. Inspectors will focus their enquiries and evidence-gathering activities on the areas for priority action that were identified in the full inspection. Activities may include, but are not limited to, meetings with leaders from the local area partnership, sampling the experiences of children and young people, visits to settings/provision and discussions with children and young people with SEND, their families and practitioners.

Discussions with children and young people with SEND and their families

175. Inspectors may arrange to meet with children and young people with SEND and their families during the inspection. This is to discuss their individual experiences or to ask for their views on a specific aspect of the local area's arrangements and the action it has taken to address the areas for priority action.

Feedback to leaders

176. On the final day of the monitoring inspection, the inspection team will provide feedback to leaders on whether they have taken effective action to address the areas for priority action in the full inspection report. Attendance is voluntary, and any attendee may leave at any time, including leaving for a short time and then returning. If the feedback is likely to be challenging or is likely to raise difficult issues, the lead inspector will be sensitive to any implications of this. The attendees at this feedback meeting will be agreed between the Ofsted lead inspector, CQC inspector, the LANO and the ICB representative. However, we expect them to include:

- the chief executive officer or leader of the council
- the DCS and elected member with responsibility for SEND from the local authority
- the LANO
- the ICB representative
- the parent carer forum representatives

- a colleague chosen by the DCS, chief executive officer or council leader, the LANO and the ICB representative to accompany them (optional)
- DfE and regional NHSE officials who are the primary contacts for the local area

Approach to outcomes

177. Inspectors will evaluate whether the local area partnership is taking effective action against each area for priority action set out in the full inspection report. When deciding on the outcomes, inspectors will consider the relevant evaluation criteria, as set out in [paragraphs 48 to 61](#), that relate to each area for priority action.

Effective action

Inspectors will reach this outcome if, having gathered and evaluated evidence, they find that the local area partnership has taken reasonable steps to address the area for priority action since the full inspection, based on the relevant evaluation criteria.

Effective action does not mean that the area for priority action is no longer a concern or that the local area can stop taking action to address it.

Inspections are a point-in-time evaluation. Areas for priority action that receive an effective action outcome may still be identified as areas for priority action in future inspections. This can happen if the local area has not continued to take action and/or the action has not continued to have a positive impact on the experiences and outcomes for children and young people with SEND.

Ineffective action

Inspectors will reach this outcome if, having gathered and evaluated evidence, they find that the local area partnership has not taken reasonable steps to address the area for priority action since the full inspection based on the relevant evaluation criteria.

An ineffective action outcome means that the area for priority action is still a significant concern and that the local area partnership needs to take further and/or different action.

Each outcome will be accompanied by a short summary of the inspectors' evaluation of the action the local area partnership has taken to address the area for priority action.

The monitoring inspection letter

178. The lead inspector is responsible for writing the monitoring inspection outcome letter and submitting the evidence to Ofsted shortly after the end of

the monitoring inspection. The CQC inspector and any Ofsted team inspectors will contribute to the process of drafting the letter.

179. The letter will include:

- the findings on whether the local area partnership has taken effective action to address the areas for priority action identified at the full inspection
- a clear and brief summary of the evidence gathered during the inspection
- clarification that inspection findings will be sent to the DfE and regional NHSE, and may be used by them to determine further intervention and/or support

180. As far as possible, and subject to the outcome of the quality assurance process, the findings in the letter will be consistent with the feedback given to the local area partners at the end of the inspection.

181. In cases where Ofsted and CQC have had reason to carry out a monitoring inspection of a local area that was not previously required to produce a priority action plan (area SEND) (see also [paragraph 161](#)), the contents of the letter will directly address the issues that gave rise to the decision to inspect. Inspectors may decide that the local area should produce a priority action plan (area SEND) and/or that the next planned full inspection should be brought forward.

Quality assurance and publication of the monitoring inspection letter

182. Ofsted will publish the monitoring inspection letter on the local authority section of [Ofsted's reports website \(https://reports.ofsted.gov.uk/\)](https://reports.ofsted.gov.uk/). The final letter will normally be shared with the local area partnership within 30 working days of the end of the monitoring inspection.

183. The process and arrangements for quality assuring and finalising the monitoring inspection letter are the same as for inspection reports (please refer to [paragraphs 136 to 142](#) (<https://www.gov.uk/government/publications/area-send-framework-and-handbook/area-send-inspections-framework-and-handbook#arrangements-for-publishing>)).

184. The process for ensuring the quality of monitoring inspections is the same as that for full inspections, as set out in [paragraphs 153 to 156](#) (<https://www.gov.uk/government/publications/area-send-framework-and-handbook/area-send-inspections-framework-and-handbook#quality-assurance>).

After the monitoring inspection

185. Ofsted and CQC ask that the principal authority, and any other local area partners who were involved in making the priority action plan (area SEND), update the plan after the monitoring inspection.

186. Any complaints about monitoring inspections will be subject to the same arrangements as for complaints about full inspections. Information about this is set out in [paragraphs 157 to 159](#)

(<https://www.gov.uk/government/publications/area-send-framework-and-handbook/area-send-inspections-framework-and-handbook#complaints>).

187. Arrangements for securing, retaining and disposing of the evidence base for monitoring inspections are the same as for full inspections, as detailed in [paragraph 144](#) (<https://www.gov.uk/government/publications/area-send-framework-and-handbook/area-send-inspections-framework-and-handbook#monitoring-inspections>).

Part 4: Engagement meetings

188. Ofsted and CQC will invite local area partnerships to engagement meetings, with at least 1 month's notice. These meetings do not have evaluative outcomes but support collaboration by bringing education, health and social care partners together, as well as keeping a spotlight on SEND provision.

The engagement meeting will:

- discuss the partnership's self-evaluation, SEND action plan or equivalent document and how they measure the impact of their work on the experiences and outcomes of children and young people with SEND and their families
- discuss any concerns or changes to the local SEND system and how leaders are addressing them

What will be discussed at engagement meetings

189. During engagement meetings, Ofsted and CQC will explore how the local area partnership monitors the impact of its arrangements for children

and young people with SEND. The meeting should last no longer than 2 hours.

The meeting will focus on:

- the content of the self-evaluation, SEND action plan or equivalent document
- the action the local area leaders are taking to address the areas for improvement and/or priority action set out in the full inspection report
- what the local area partnership is doing to maintain or improve good practice
- how local area leaders are monitoring the impact of their actions
- emerging local and/or national SEND issues that affect delivery of services
- a discussion about the current area SEND thematic topic, if appropriate
- the approximate timing of the next engagement meeting

Self-evaluation in advance of engagement meetings

190. We will ask local area partnerships to provide us with any available self-evaluation or similar documents at least 2 weeks before the engagement meeting. This should set out:

- what leaders know about children and young people's needs, aspirations, experiences and outcomes in their area
- how the local area partnership monitors the impact of its arrangements for children and young people with SEND

191. There is no prescribed format or content for the self-evaluation, but it should be succinct and reflect the local area partnership's routine business. Ofsted must ensure that CQC representatives receive a copy.

192. Ofsted and CQC representatives should prepare for the meeting having reviewed the self-evaluation, SEND action plan or similar document and any local trends or key issues they consider relevant. For Ofsted, this includes a review of regional intelligence about the experiences of children and young people with SEND in the local area.

Timing and arrangements for engagement meetings

193. The frequency and timing of engagement meetings will depend on the outcome that the local area receives at their full inspection and any regional intelligence received by Ofsted and CQC.

- Local area partnerships whose arrangements typically lead to positive experiences and outcomes for children and young people with SEND will be invited to up to 2 engagement meetings before their next full inspection.
- Local area partnerships whose arrangements lead to inconsistent experiences and outcomes for children and young people will be invited to 1 engagement meeting before their next full inspection.
- Local area partnerships whose arrangements are found to have widespread and/or systemic failings will receive a monitoring inspection usually within 18 months from the date they received their final report. They may also be invited to an engagement meeting before their next full inspection. This will usually take place after their monitoring inspection.

194. Local area partnerships who have not had a full inspection under the new area SEND framework will continue to be invited to engagement meetings until they have their full inspection.

195. Ofsted and CQC retain the right to invite local area partnerships to further engagement meetings if they hold or receive any information that raises a concern about the effectiveness of arrangements for children and young people with SEND and their families.

Arrangements for the engagement meeting

196. Engagement meetings will take place at a mutually convenient time. The Ofsted regional director may exercise their discretion about the timing of the meeting, taking into account inspection outcomes and any recent inspection activity or intelligence. The engagement meeting will usually take place online. A regional representative from Ofsted will chair the discussion and will be accompanied by a Children's Services Inspector from CQC. An Ofsted regional representative will chair the meeting. A social care senior HMI or HMI may also attend.

197. We expect the DCS, the ICB representative and parent carer forum representatives to attend the engagement meeting. It is for the DCS and the ICB representative to determine who else attends from the local authority and the health teams. For the meeting to be effective, all attendees should have a clear purpose for being there and be able to contribute to the meeting.

After the engagement meeting

198. Ofsted and CQC will write a meeting note after the engagement meeting and send this to the DCS and the ICB representative within a month of the meeting taking place. The regional representative from Ofsted will take the lead in writing the meeting note but must share it with the CQC

representative before sending it to the local area partnership. The meeting note will include:

- the date of the meeting and who attended
- a factual summary of the agenda items discussed
- the approximate timing of the next engagement meeting
- any next steps

199. The engagement meeting will not result in evaluative outcomes. The meeting note will only be for Ofsted, CQC and the leaders of the local area partnership to retain for their records. Ofsted and CQC will not publish the meeting note. The local area partnership can decide whether it wants to publish the meeting note. It may also wish to share the meeting note with DfE and regional NHSE.

Annex A: information requested to support inspections

200. This annex sets out the information that inspectors request when they notify the local area partnership of an area SEND full inspection. It also sets out the information that the inspectors will request to assist them in selecting children and young people's cases for tracking, and the further information they will request about those selected. Inspectors may request some of the Annex A information for monitoring inspections. The table below sets out the high-level timeline for sharing this information.

Day/time	Activity
Week 1, Monday	Inspectors request the information set out in Annex A
Week 1, Tuesday, by 11am	Local area partnership provides person-level data to help inspectors to select children and young people to track Local area partnership provides requested information about arrangements for commissioning SEND-related health services: see the health commissioning template. Additional information is in section 1.5 of the Information to be provided by the local area partnership following notification table Local area partnership provides information on commissioning of residential special schools: see the information on commissioning of residential special schools

Day/time	Activity
	template). Additional information is in section 3.2 of the Information about education at the end of week 1 table
Week 1, Tuesday, by 5pm	Inspectors select children and young people's cases to be tracked
Week 1, Friday, by 5pm	Local area partnership provides additional information about children and young people selected for tracking Local area partnership provides additional information about SEND arrangements

201. Inspectors will provide details for accessing an online system that the local area partnership can use to share the information.

202. Inspectors will gather personal information, including some sensitive personal data, that is necessary to help them evaluate local arrangements for children and young people with SEND. [Ofsted's privacy notice](#) (<https://www.gov.uk/government/publications/ofsted-privacy-notices>) and [CQC's privacy notice](#) (<https://www.cqc.org.uk/about-us/our-policies/privacy-statement>) set out what data we collect, what we do with it, how long we keep it for and people's rights under the Data Protection Act 2018.

203. If information is shared that is relevant to more than one of the requests, it does not need to be replicated in each section, but the lead inspector should be made aware of it.

Week 1: person-level data

204. When the lead inspector contacts the local area partnership, they will ask for lists containing person-level data. An outline of the broad contents of each list is set out below. Detailed guidance about the fields for each list is available in the [person-level data guidance and template](#) (<https://www.gov.uk/government/publications/area-send-framework-and-handbook>). Included in the spreadsheet is a template for each person-level list. Please provide these links in Excel. The local area partnership should provide the person-level data lists by 11am on the day after notification.

205. The inspectors will use this data to select the children and young people whose experiences they will evaluate. The person-level data lists should be as up to date as possible. However, if the most recent available data is a historical snapshot, such as from the [special educational needs survey \(SEN2\)](#) (<https://www.gov.uk/guidance/special-educational-needs-survey>) or

the [alternative provision \(https://www.gov.uk/guidance/alternative-provision-ap-census\)](https://www.gov.uk/guidance/alternative-provision-ap-census) census, this will be acceptable.

List number	Description
List 1	All children and young people with an EHC plan for whom your local authority is responsible. Please see the 'Guidance' and 'FAQ' tabs in the person-level data guidance and template for further information
List 2	All children and young people who are in receipt of SEN support educated in settings within your local area. Please see the 'Guidance' and 'FAQ' tabs in the person-level data guidance and template for further information

206. Where possible, we have aligned the information in the person-level lists with DfE guidance on SEN2 and the school/alternative provision census. The spreadsheet template includes an overview of the codes to use, sourced from the SEN2 or school/alternative provision census guidance.

207. The person-level data lists should represent the local area partnership's most recent available data at the point of notification. When the local area partnership shares the lists, they should indicate what date(s) the data in each list represents as far as possible.

208. If certain data is unavailable, the lead inspector may wish to discuss how the local area partnership monitors those areas.

209. In the future, we may request different information, but this will always happen following engagement with local area partnerships.

210. If you have any queries after you have been notified that an inspection is to take place, please contact the lead inspector.

Week 1: information about the local area partnership's SEND arrangements

211. In the first week of inspection, the local area partnership should provide the information set out below.

212. The local area partnership should not provide all of the information that it holds on each subject. The inspectors will want only the local area

partnership's best and most recent information that relates to the scope of the inspection. Inspectors will not review information that they deem to fall outside the scope of the inspection.

Information to be provided by the local area partnership following notification

Number	Item	Description
1.1	Local area partnership structure	The education, health and care partners involved in the local area partnership; the governance arrangements, decision-making structures, how partners work together and who is responsible for delivering what
1.2	Assessment of needs	Local area partnership's analysis of the local needs of SEND including the current joint strategic needs assessment
1.3	Strategic planning	Planning strategies for children and young people with SEND, including any self-evaluations and action plans resulting from internal and external reviews
1.4	Dynamic support register	List of all children and young people aged 0 to 25 on the dynamic support register
1.5	Health system overview and commissioning arrangements	The structure of the local health services, which includes who commissions the service and who provides the service. This information must be provided by 11am on the day after notification. This proforma can be used: Health commissioning template

Additional information to be provided by the local area partnership at the end of week 1

Number	Item	Description
2.1	Approach to EHC plans	The local area partnership's findings related to the development, oversight and quality assurance of EHC plans, including the services

Number	Item	Description
		involved; and the assurance framework for EHC plans, including findings from EHC plan audits
2.2	Tribunal appeals	Analysis and learning from tribunal applications and resolutions from the last 12 months
2.3	Information about specific cohorts	The numbers of children and young people with SEND who are: not attending an education setting, including those who receive home education; attending alternative provision; known to youth justice services; eligible to receive adult care services; on part-time timetables for their education
2.4	Outcome measures	The partnership's analysis of outcomes data on preparation for adulthood for children and young people with SEND, including strengths, challenges and actions taken

Information about education at the end of week 1

Number	Item	Description
3.1	Education system overview	The structure of the local education system, including the types of education setting, and which settings have specialist provision available
3.2	Residential special schools	Information about the commissioning and oversight of placements of children and young people in residential special schools. This proforma can be used: Residential special school commissioning and provision
3.3	Out-of-area placements	Information about the commissioning and oversight of education settings outside the local area that provide education for the area's children and young people with EHC plans; data on the number of children and young people with SEND who are placed out of area, and the reasons for this

Number	Item	Description
3.4	Alternative provision	Data about children and young people who have EHC plans, or are in alternative provision on part-time timetables; this should include the numbers of children and the length of time they have been in alternative provision
3.5	Attendance	The most recent evaluation of educational attendance of children and young people with SEND in the local area and any supporting action plan
3.6	Transport	Information about the strategy for transporting children and young people with SEND to provision, including activities, short breaks and health appointments (where relevant)
3.7	Destinations and employment	Data about destinations after leaving school, including data about young people not in education, employment or training, and employment data for 18- to 25-year-olds with SEND

Information about care at the end of week 1

Number	Item	Description
4.1	Social care services	Organisational structure showing lines of reporting and accountability. Details of any services in the area that have been commissioned for children and young people with SEND, including from the community, the voluntary sector and the local offer
4.2	Short breaks	The local authority short-break statement, and information on the current provision and uptake

Number	Item	Description
4.3	Thresholds, assessments and provision	The thresholds/criteria for providing services and assessments for children and young people with SEND, at different levels of need. This should include information on services for early help
4.4	ILACS lists	ILACS person-level data lists 6, 7, 8, 9 as described in ILACS Annex A
4.5	Virtual schools	The annual report of the headteacher of the virtual school and any other relevant plans
4.6	Transition and adult social care	The arrangements for transition for children and young people with SEND and how adult social care services are provided to 18- to 25-year-olds

Information about health at the end of week 1

Number	Item	Description
5.1	Performance data	Performance data from the previous 12 months (including current waiting times) on delivery of: the healthy child programme, therapy services (including speech and language therapy; occupational therapy; physiotherapy; newborn hearing, audiology, dietetics, child and adolescent community mental health services, neurodiversity assessment and community paediatricians) for children and young people aged 0 to 19 years and 19 to 25, if available
5.2	Pathways	Pathways for referrals to health services for assessment, as set out in 5.1
5.3	Recovery action plans	Recovery action plans to support children and young people who are waiting longer than the recommended time frames for assessment, diagnosis and treatment for the services identified in 5.1

Information from the local authority about alternative provision at the end of week 1

Number	Item	Description
6.1	Strategy and commissioning arrangements of alternative provision	Information about the needs of children and young people in alternative provision and the local authority's strategy and commissioning arrangements for alternative provision, including how they monitor future need for placements and maintain sufficient provision
6.2	Needs of children and young people	Information about the needs of the children and young people in the area who are in alternative provision
6.3	Settings and attendees	Information about the alternative provision settings used by the local authority, and the children or young people who attend them, including whether these are part-time placements
6.4	Monitoring and oversight information	A summary of the local authority's quality assurance process for alternative provision, including the relevant framework

Week 1: selecting providers and settings for sampling visits

213. The lead inspector will ask the LANO and ICB representative to identify a list of providers and services where inspectors can sample the records of individual children and young people. The inspection team will then select the providers and services where it will carry out sampling, and will ask the LANO to inform the providers and services.

Week 1: additional information about children and young people selected for tracking

214. The lead inspector will ask the LANO to coordinate the sharing of information with the inspection team about the children and young people who are being tracked. For each child or young person, this information will include:

Number	Item	Description
7.1	Pen portrait	A pen portrait of the child or young person, including information about their needs, aspirations and support
7.2	Multi-agency audit	A multi-agency chronology of the partnership's involvement with the child or young person. This may include significant events; any education, health and/or care assessments, including an early help assessment if applicable; any evaluation of the impact of plans and support; and learning for the providers and services involved in the last 2 years
7.3	Plans	The most recent plans, including an EHC plan, personal education plan or care plan, where relevant
7.4	Discussion notes	Notes of any key multi-agency discussions or equivalent
7.5	Commissioning agreements	The current commissioning agreement, when the child or young person is in alternative provision

1. [Children Act 2004 \(https://www.legislation.gov.uk/ukpga/2004/31/section/20\)](https://www.legislation.gov.uk/ukpga/2004/31/section/20), section 20.
2. [‘Alternative provision: statutory guidance for local authorities’ \(https://www.gov.uk/government/publications/alternative-provision\)](https://www.gov.uk/government/publications/alternative-provision), Department for Education, January 2013.
3. Health services for children and young people with SEND are provided through acute and community services, and Mental Health Trusts and

other non-NHS providers. The majority of services are termed as community services. These include speech and language therapy, occupational therapy and physiotherapy, orthotics, community and specialist nursing, and medical care and interventions. Children and young people with SEND also use children and young people's mental health services (community and inpatient) and may access health and justice services and secure estates. Children and young people with SEND may also need access to specialist equipment, wheelchairs, continence supplies and assistive technology.

4. [‘Alternative provision: statutory guidance for local authorities’](https://www.gov.uk/government/publications/alternative-provision) (<https://www.gov.uk/government/publications/alternative-provision>), Department for Education, January 2013.
5. [‘Keeping children safe in education’](https://www.gov.uk/government/publications/keeping-children-safe-in-education-2) (<https://www.gov.uk/government/publications/keeping-children-safe-in-education-2>), Department for Education, 2015.
6. [‘Working together to safeguard children’](https://www.gov.uk/government/publications/working-together-to-safeguard-children-2) (<https://www.gov.uk/government/publications/working-together-to-safeguard-children-2>), Department for Education, 2018.
7. [The Children Act 2004 \(Joint Area Reviews\) Regulations 2015](https://www.legislation.gov.uk/ukxi/2015/1792/regulation/3/made) (<https://www.legislation.gov.uk/ukxi/2015/1792/regulation/3/made>).

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